IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 105

COMP. APPL/149(CH)2024
And
CP(CAA) No. 16/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:

Star Wire (India) Electricity Pvt. Ltd. & Ors. …Transferor Companies

And

Star Wire (India) Laboratories Pvt. Ltd. …Transferee Company

Under Section: 230-232, CA 2013, Rule 11 of NCLT

Order delivered on 12.07.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioners	:	Mr. Kartikeya Goel, Advocate
For the RBI	:	Mr. Deepak Suri, Advocate Mr. K.V. Singhal, Advocate
For the RD	:	Mr. Vineet Khatri, Advocate
For the Income Tax Department	:	Mr. Yogesh Putney, Senior Standing Counsel
For the OL	:	Mr. Edward Augustine George

ORDER

COMP. APPL/149(CH)2024

The present application has been filed under Rule 11 of NCLT Rules 2016. In compliance of the last order dated 14.06.2024, the present application has been filed

for consolidation of CP(CAA) No.21/Chd/Hry/2023(*item No.106 of the cause list*) with the present petition i.e. CP(CAA) No.16/Chd/Hry/2023.

Therefore, COMP. APPL/149(CH)2024 is ***allowed*** and the same be taken on record. Therefore, CP(CAA) No.21/Chd/Hry/2023 stands consolidated with CP(CAA) No.16/Chd/Hry/2023 thus, COMP. APPL/149(CH)2024 is ***disposed of*** accordingly and the same be tagged with the main petition for reference purpose.

CP(CAA) No. 16/Chd/Hry/2023

It is stated by learned counsel for OL, that the response to the reply of the OL report has been filed however, the same is neither on DMS nor physical copy is available. He is directed to locate with the Registry. Reply to the remaining reports be filed by the Companies, within one week. It is stated by Mr. Yogesh Putney, Senior Standing Counsel for the Income Tax Department, that reports have been filed and there are no objections however, the Income Tax Department will be at liberty to take appropriate steps against the transferee company and resulting company and to that effect an affidavit has been filed on behalf of the petitioner companies vide Diary No.1223/9 dated 08.02.2024. The same is taken on record. Learned counsel for the petitioner is directed to file affidavits confirming that the Transfer Company No.1 is not engaged in generation/distribution of electricity and scheme is in compliance with Section 66 of the Companies Act, 2013. Let the matter be listed on 19.07.2024, in the supplementary list.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

Pooja